

Smt. Kavitha vs Sri. Krishnamoorthy on 30 January, 2023

Bench: Alok Aradhe, S Vishwajith Shetty

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MFA.CROB No. 128 of 2016

IN THE HIGH COURT OF KARNATAKA AT BENGALURU
DATED THIS THE 30TH DAY OF JANUARY, 2023
PRESENT
THE HON'BLE MR JUSTICE ALOK ARADHE
AND
THE HON'BLE MR JUSTICE S VISHWAJITH SHETTY
M.F.A. CROB. NO. 128 OF 2016 (FC)

BETWEEN:
SMT. KAVITHA
AGED ABOUT 34 YEARS
DIVORCED WIFE OF KRISHNAMOORTHY
R/AT VERA NILAYA, KODENGALLU
NEAR MAHAVEERA COLLEGE
PRANTHYA VILLAGE, MOODBIDRI
MANGALORE TALUK.

...CROSS OBJECTOR

(BY MISS. RACHITHA RAJASHEKAR, ADV., FOR
SRI VENKATESH SOMAREDDI, ADV.)
AND:

Digitally signed
by B A KRISHNA
KUMAR
Location: High
Court of
Karnataka

SRI KRISHNAMOORTHY
AGED ABOUT 43 YEARS
S/O LATE SANJEEVAPPA
R/AT SANJEEVAPPA BUILDING
BUILDING NO.8/10, RANGASWAMY
COMPOUND, BASAPPA ROAD
SHANTHI NAGAR
BANGALORE - 27.

...RESPONDENT

(BY SRI S.S. KOTI., ADV., - ABSENT)

THIS M.F.A. CROB. IN MFA.NO.5586/2016, FILED U/0.41 RULE
22 OF CPC R/W. 19(1) OF FAMILY COURTS ACT, AGAINST THE
JUDGMENT AND DECREE DATED 16/02/2016, PASSED IN MC.
NO.394/2015, ON THE FILE OF THE PRINCIPAL JUDGE, FAMILY
COURT, D.K. MANGALURU, ALLOWING THE PETITION FILED
U/SEC.13(1) (ia) (ib) OF THE HINDU MARRIAGE ACT.

THIS M.F.A.CROB., COMING ON FOR ADMISSION, THIS DAY,
VISHWAJITH SHETTY J., MADE THE FOLLOWING:

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MFA.CROB No. 128 of 2016

JUDGMENT

This cross-objection under Order XLI Rule 22 of CPC has been filed assailing the judgment and decree dated 16.02.2016 passed by the Family Court, D.K., Mangaluru, in M.C.No.394/2015, in so far as it relates to awarding permanent alimony to the cross-objector, while dissolving the marriage of the cross-objector with the respondent.

2. Heard the learned Counsel for the cross-objector and also perused the material available on record.

3. Brief facts as revealed from the records that may be necessary for the purpose of disposal of this cross-objection are, the marriage of the cross-objector with the respondent was solemnized on 30.11.2013 at Kotebagilu Shri Veeramurthi Temple Kalyana Mantap, Moodbidri, as per the rites and customs prevailing in their community and it was an arranged marriage. From the wedlock, the couple have a son and the child is presently in the custody of the cross-objector. The couple lived together as husband and wife for a short period and thereafter they developed misunderstanding and as a result, their relationship got strained and ultimately, the respondent neglected the cross-objector, and therefore, the cross-objector took shelter in her parents house and filed M.C.No.394/2015 before the Family Court, D.K. Mangaluru, under Section 13(1)(ia) & (ib) of the Hindu Marriage Act, 1955 (for short, 'the Act') seeking dissolution of her marriage with the respondent.

4. The respondent had not entered appearance, and therefore, he was placed ex-parte. The learned Judge of the Family Court vide the impugned judgment and decree dated 16.02.2016 had allowed the petition filed by the cross-objector under Section 13(1)(ia) & (ib) of the Act and had dissolved the marriage between the parties that was solemnized on 30.11.2013 and though there was no application filed by the cross-objector seeking permanent alimony, the Family Court had awarded an amount of Rs.5 lakhs as permanent alimony to the cross-objector and directed the respondent to pay the said amount within a period of three months from the date of the judgment. Being aggrieved by the said judgment and decree, the respondent had preferred M.F.A.No.5586/2016, which was dismissed for non-prosecution on 12.11.2020, and being not satisfied with the quantum of permanent alimony awarded by the Family Court, the cross-objector has preferred this cross-objection.

5. Learned Counsel for the Cross-Objector submits that the permanent alimony awarded by the Family Court is very meager compared to the assets of the respondent. She submits that the

respondent has got a share in the family properties and he has not disputed the same. She submits that the cross- objector is taking care of the minor child who is presently studying, and therefore, the amount of Rs.5 lakhs awarded as permanent alimony needs to be enhanced.

6. We have carefully considered the submissions made on behalf of the cross-objector and also perused the material available on record.

7. In order to substantiate her case before the Family Court, the cross-objector had got examined herself as PW-1 and had got marked five documents which are the marriage invitation, marriage photo, birth certificate and family photo only. It is also not in dispute that the cross-objector had not made any application before the Family Court seeking permanent alimony nor had she placed any material before the Family Court to prove the income and the assets and liabilities of the respondent. Except stating that the respondent has got a share in his family property, she has not submitted any material either before the Family Court or before this Court to prove the assets and liabilities of the respondent.

8. It is the specific case of the cross-objector that the amount of permanent alimony awarded by the Family Court is very meager. The respondent was placed ex-parte before the Family Court and without even there being any application, the Family Court had awarded Rs.5 lakhs as permanent alimony. There was no pleading or evidence before the Family Court to assess respondent's income. Therefore, the permanent alimony awarded by the Family Court cannot be enhanced in this cross-objection. Under the circumstances, we are of the considered view that if the judgment and decree passed by the Family Court which is impugned in this cross-objection is set aside only to the extent it relates to directing the respondent to pay permanent alimony of Rs.5 lakhs to the cross-objector, with liberty to the cross-objector to file a separate petition under Section 25 of the Act before the Family Court seeking permanent alimony, the same would meet the ends of justice. Accordingly, the following order:

9. The cross-objection is allowed. The impugned judgment and decree dated 16.02.2016 passed by the Family Court in M.C.No.394/2015 in so far as it relates to directing the respondent to pay permanent alimony of Rs.5 lakhs to the cross-objector is set aside. The cross-objector is at liberty to file a separate petition before the Family Court under Section 25 of the Act seeking permanent alimony from the respondent, and if such an application is filed, the Family Court shall consider and decide the same in accordance with law.

Sd/-

JUDGE Sd/-

JUDGE KK